

26STCV10628 26STCV10628

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C09%2F10%2F2026

Source SHA-256: e4380fd158963557ac5c9c86ef83d78e1686e795bc9887b3a85b7a0718e64d2e

Case Number: 26STCV10628 Hearing Date: September 10, 2026 Dept: 529

JAI JACKSON v. XCOURT, INC., DBA CROSSCOURT, et al.

motion to quash service of plaintiffs' complaint

Date of Hearing: September 10, 2026 Trial Date: None set

Department: 529 Case No.: 26STCV10628

Moving Party: Defendant Brendan Doney

Responding Party: Plaintiff Jai Jackson

BACKGROUND

On April 2, 2026, Plaintiff Jai Jackson filed a complaint against XCourt, Inc. dba Crosscourt, Charles Seltzer, and Brendan Doney for various violations of the Labor Code, FEHA violations, unfair competition, breach of contract, and promissory estoppel.

[Tentative] RulinG

Specially Appearing Defendant Brendan Doney's Motion to Quash Service of Summons is GRANTED.

DISCUSSION

Defendant Brendan Doney, specially appearing, to move the court for an order quashing Plaintiff's purported service of summons and complaint were not properly served on Defendants as described in the proof of service filed by Plaintiff.

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

Defendant Brendan Doney moves to quash service of the summons and complaint on the grounds Doney has neither worked at that location, nor has it been his business address, since July 2, 2025, nearly a year prior to the attempted service.

In opposition, Plaintiff states they do not oppose the motion but notes that the motion was filed after Defendant Doney's time to respond to the complaint had expired and the declaration of Defendant Doney omits the facts on which the motion depends.

As Plaintiff does not oppose the motion, the court GRANTS Specially Appearing Defendant Doney's motion to quash service of summons. Plaintiff is ordered to re-serve Defendant. The court briefly notes Plaintiff's other contentions. However, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ... [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (CCP § 418.10(a)(1).) As Defendant Doney was never served, the court finds good cause under Code of Civil Procedure section 418.10(a)(1) to consider the motion. Moreover, as noted above, it is the Plaintiff's burden to show jurisdiction was established. Defendant's declaration has met his burden.

Based on the foregoing, Specially Appearing Defendant Brendan Doney's Motion to Quash Service of Summons is GRANTED.